

26STCV09364 26STCV09364

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-06-24

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Case Number: 26STCV09364 Hearing Date: June 24, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 17

TENTATIVE

RULING

ZHOIE PEREZ

vs.

SALVADOR URIZAR et al.

Case

No.: 26STCV09364

Hearing Date: June 24, 2026

Defendants' demurrer is OVERRULED IN PART, SUSTAINED IN PART.

Defendants' demurrer is OVERRULED as to the 3rd and 5th

causes of action, but SUSTAINED, WITHOUT LEAVE TO AMEND, as to the 4th

cause of action.

On 3/24/2026, Plaintiff Zhoie Perez

(Plaintiff) filed suit against Defendants Salvador Urizar and Proliant Services

(collectively, Defendants), alleging: (1) intentional infliction of emotional

distress; (2) negligence; (3) violations of the Ralph Civil Rights Act; (4)

violations of the Unruh Act; (5) violations of the Bane Civil Rights Act; (6)

assault and battery; and (7) negligent hiring.

On 4/14/2026, Defendants demurred to

Plaintiff's 3rd, 4th, and 5th causes of

action.

Discussion

Defendants argue that Plaintiff has

not sufficiently pled her 3rd, 4th, or 5th

causes of action.

As for the third cause of action for

violation of the Ralph Civil Rights Act, the Ralph Civil Rights Act, California

Civil Code Section 51.7, provides that "[a]ll persons within the jurisdiction

of this state have the right to be free from any violence, or intimidation by

threat of violence, committed against their persons or property because of"

specified protected characteristics, including political affiliation, sex,

race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status.” (Cal. Civ. Code § 51.7(a)–(b).)

Defendants contend that Plaintiff has failed to allege facts sufficient to establish that any conduct by Defendants was motivated by Plaintiff’s actual or perceived protected characteristic. However, Plaintiff alleges that she is a trans woman of color and that she was violently pepper sprayed on a public sidewalk without provocation. Moreover, Plaintiff alleges that “[a]ccording to Defendants Urizar’s Facebook page he has a severe negative outlook on Transgender individuals.” (Complaint ¶¶ 51, 60.) These allegations are sufficient at the pleadings stage to show that she was targeted with violence based on a protected characteristic.

As for the fourth cause of action, to state a cause of action under the Unruh Act, a plaintiff must allege: (1) the defendant denied, aided or incited a denial of, or discriminated or made a distinction that denied, full and equal accommodations, advantages, facilities, privileges, or services to the plaintiff; (2) a motivating reason for the defendant’s conduct was the plaintiff’s protected characteristic; (3) the plaintiff was harmed; and (4) the defendant’s conduct was a substantial factor

in causing the harm. (Stamps v. Superior Court (2006) 136 Cal.App.4th

1441, 1443.) The Unruh Act applies exclusively to “business establishments.”

Here, Plaintiff does not allege that

she was a patron or customer of any business, and Plaintiff alleges that she

was on the public sidewalk filming the exterior of a banking facility for

purposes of “conducting a news story.” (Complaint ¶¶ 11–12.) As such, Plaintiff

herself alleges that the alleged acts occurred on a public sidewalk and not

while she was trying to avail herself of some business establishment.

Accordingly, the Court finds this claim to be insufficiently pled.

Finally, as for the fifth cause of

action, the Bane Civil Rights Act, California Civil Code Section 52.1, provides

a cause of action where a person “interferes by threat, intimidation, or

coercion, or attempts to interfere by threat, intimidation, or coercion, with

the exercise or enjoyment by any individual or individuals of rights secured by

the Constitution or laws of the United States, or of the rights secured by the

Constitution or laws of this state.” (Cal. Civ. Code § 52.1(a).) As clarified

by the Court of Appeal in *Cornell v. City and County of San Francisco* (2017)

17 Cal.App.5th 766, a Bane Act claim can be established in one of two ways: (1)

by showing a violation of the plaintiff’s rights committed with “specific

intent”—that is, with a reckless disregard for the plaintiff’s constitutional

or statutory rights; or (2) by showing a violation of the plaintiff's rights

committed with general intent, plus threats, intimidation, or coercion beyond

the coercion inherent in the wrongful act itself. (Id. at pp. 799–803.)

Here, Plaintiff's allegations are

sufficient to show that Defendant acted with a reckless disregard for

Plaintiff's first amendment rights, and interference with Plaintiff's right to

conduct a news report on a public sidewalk. While Defendant may dispute this

characterization of her conduct, the Court accepts well pled allegations as

true at the pleadings stage.

Based on the foregoing, Defendants'

demurrer is overruled in part, sustained in part. Defendants' demurrer is

overruled as to the 3rd and 5th causes of action, but

sustained, without leave to amend, as to the 4th cause of

action.

It is so

ordered.

Dated:

June , 2026

Hon. Jon R. Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please

contact the court clerk at (213) 633-0517.